

Many manufacturers participate in an arbitration program that is certified by the Department of Consumer Affairs' Arbitration Certification Program. These manufacturers have agreed to comply with the arbitrator's decision, should the consumer accept it.

WHAT IS ARBITRATION?

Arbitration is a free and relatively simple way of resolving warranty disputes between manufacturers and consumers. Both you and the manufacturer agree to allow a neutral third party (an arbitrator) to decide whether a reasonable number of repair attempts have been made and what relief could be granted.



ARBITRATION CERTIFICATION PROGRAM

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CALIFORNIA DEPARTMENT
OF CONSUMER AFFAIRS

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WHAT ARE SOME ADVANTAGES OF ARBITRATION?

- It is free, faster, and less complicated than going to court.
- An arbitration decision is made within 40 days of a program receiving a claim.
- An arbitrator may request an inspection and written report on your vehicle's condition by an independent expert at no cost to you.
- You have the option to present your case in person, virtually, in writing, or over the phone. The arbitration meeting is open to the public, so you can bring a family member or friend for support.

WHAT ARE THE POSSIBLE RESULTS OF ARBITRATION?

Decisions in the arbitration process are made on a case-by-case basis and may include:

- An additional repair attempt.
- A replacement vehicle.
- A refund of the purchase price.
- Reimbursement for incidental expenses (towing, rental car, etc.).
- Denial.



- You can accept or reject the decision. If you accept it, the manufacturer must accept it, too.
- If you reject the decision, you can still pursue your rights in court. However, before you pursue your rights in court, you may consider consulting with an attorney.

WHAT SORT OF ISSUES QUALIFY FOR ARBITRATION?

The manufacturer failed to honor your new car warranty's terms, and you are still within your original warranty period.

WHAT ISSUES DO NOT QUALIFY FOR ARBITRATION?

- Sales disputes between consumers and dealers.
- Equipment or defects are not covered by the manufacturer's new vehicle warranty.
- Service contract or extended warranty issues.
- After-market (non-manufacturer) parts.
- Certain consequential damages.
- Personal injury claims.
- Cases in litigation.
- In most cases, disputes regarding the "living" portion of a motor home.

I BOUGHT MY VEHICLE USED WITH NO WARRANTY. DOES CALIFORNIA'S LEMON LAW STILL APPLY TO MY VEHICLE?

No. The Lemon Law applies only to disputes involving the manufacturer's new vehicle warranty.

